

ALITO, J., concurring

law. In *Tam*, for example, we did not pause to consider whether the disparagement clause might admit some permissible applications (say, to certain libelous speech) before striking it down. The Court’s finding of viewpoint bias ended the matter. And similarly, it seems unlikely we would compare permissible and impermissible applications if Congress outright banned “offensive” (or to use some other examples, “divisive” or “subversive”) speech. Once we have found that a law “aim[s] at the suppression of” views, why would it matter that Congress could have captured some of the same speech through a viewpoint-neutral statute? *Tam*, 582 U. S., at 248 (opinion of Kennedy, J.). But in any event, the “immoral or scandalous” bar is substantially overbroad. There are a great many immoral and scandalous ideas in the world (even more than there are swearwords), and the Lanham Act covers them all. It therefore violates the First Amendment.

We accordingly affirm the judgment of the Court of Appeals.

It is so ordered.

JUSTICE ALITO, concurring.

For the reasons explained in the opinion of the Court, the provision of the Lanham Act at issue in this case violates the Free Speech Clause of the First Amendment because it discriminates on the basis of viewpoint and cannot be fixed without rewriting the statute. Viewpoint discrimination is poison to a free society. But in many countries with constitutions or legal traditions that claim to protect freedom of speech, serious viewpoint discrimination is now tolerated, and such discrimination has become increasingly prevalent in this country. At a time when free speech is under attack, it is especially important for this Court to remain firm on the principle that the First Amendment does not tolerate viewpoint discrimination. We reaffirm that principle today.

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Our decision is not based on moral relativism but on the recognition that a law banning speech deemed by government officials to be “immoral” or “scandalous” can easily be exploited for illegitimate ends. Our decision does not prevent Congress from adopting a more carefully focused statute that precludes the registration of marks containing vulgar terms that play no real part in the expression of ideas. The particular mark in question in this case could be denied registration under such a statute. The term suggested by that mark is not needed to express any idea and, in fact, as commonly used today, generally signifies nothing except emotion and a severely limited vocabulary. The registration of such marks serves only to further coarsen our popular culture. But we are not legislators and cannot substitute a new statute for the one now in force.

CHIEF JUSTICE ROBERTS, concurring in part and dissenting in part.

The Lanham Act directs the Patent and Trademark Office to refuse registration to marks that consist of or comprise “immoral, deceptive, or scandalous matter.” 15 U.S.C. §1052(a). Although the statute lists “immoral” and “scandalous” separately, the PTO has long read those terms together to constitute a unitary bar on “immoral or scandalous” marks.

The Government concedes that the provision so read is broad enough to reach not only marks that offend because of their mode of expression (such as vulgarity and profanity) but also marks that offend because of the ideas they convey. The Government urges, however, that the provision can be given a narrowing construction—it can be understood to cover only marks that offend because of their mode of expression.

The Court rejects that proposal on the ground that it would in effect rewrite the statute. I agree with the majority that the “immoral” portion of the provision is not suscep-

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tible of a narrowing construction that would eliminate its viewpoint bias. As JUSTICE SOTOMAYOR explains, however, the “scandalous” portion of the provision is susceptible of such a narrowing construction. Standing alone, the term “scandalous” need not be understood to reach marks that offend because of the ideas they convey; it can be read more narrowly to bar only marks that offend because of their mode of expression—marks that are obscene, vulgar, or profane. That is how the PTO now understands the term, in light of our decision in *Matal v. Tam*, 582 U. S. 218 (2017). See Tr. of Oral Arg. 4–5. I agree with JUSTICE SOTOMAYOR that such a narrowing construction is appropriate in this context.

I also agree that, regardless of how exactly the trademark registration system is best conceived under our precedents—a question we left open in *Tam*—refusing registration to obscene, vulgar, or profane marks does not offend the First Amendment. Whether such marks can be registered does not affect the extent to which their owners may use them in commerce to identify goods. No speech is being restricted; no one is being punished. The owners of such marks are merely denied certain additional benefits associated with federal trademark registration. The Government, meanwhile, has an interest in not associating itself with trademarks whose content is obscene, vulgar, or profane. The First Amendment protects the freedom of speech; it does not require the Government to give aid and comfort to those using obscene, vulgar, and profane modes of expression. For those reasons, I concur in part and dissent in part.

JUSTICE BREYER, concurring in part and dissenting in part.

Our precedents warn us against interpreting statutes in ways that would likely render them unconstitutional. *Virginia v. American Booksellers Assn., Inc.*, 484 U. S. 383, 397 (1988) (noting that a law “will be upheld” if it is “‘readily susceptible’ to a narrowing construction that would make it

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constitutional”); *United States v. 12 200-ft. Reels of Super 8MM. Film*, 413 U. S. 123, 130, n. 7 (1973) (noting our “duty” to adopt a “‘fairly possible’” construction by which constitutional doubts “‘may be avoided’” (quoting *United States v. Thirty-seven Photographs*, 402 U. S. 363, 369 (1971))). Following these precedents, I agree with JUSTICE SOTOMAYOR that, for the reasons she gives, we should interpret the word “scandalous” in the present statute to refer only to certain highly “vulgar” or “obscene” modes of expression. See *post*, at 413–415 (opinion concurring in part and dissenting in part).

The question, then, is whether the First Amendment permits the Government to rely on this statute, as narrowly construed, to deny the benefits of federal trademark registration to marks like the one at issue here, which involves the use of the term “FUCT” in connection with a clothing line that includes apparel for children and infants. Like JUSTICE SOTOMAYOR, I believe the answer is “yes,” though my reasons differ slightly from hers.

I

A

In my view, a category-based approach to the First Amendment cannot adequately resolve the problem before us. I would place less emphasis on trying to decide whether the statute at issue should be categorized as an example of “viewpoint discrimination,” “content discrimination,” “commercial speech,” “government speech,” or the like. Rather, as I have written before, I believe we would do better to treat this Court’s speech-related categories not as outcome-determinative rules, but instead as rules of thumb. See *Reed v. Town of Gilbert*, 576 U. S. 155, 175–176 (2015) (opinion concurring in judgment).

After all, these rules are not absolute. The First Amendment is not the Tax Code. Indeed, even when we consider a regulation that is ostensibly “viewpoint discriminatory” or that is subject to “strict scrutiny,” we sometimes find the regulation to be constitutional after weighing the competing

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interests involved. See, e. g., *Morse v. Frederick*, 551 U. S. 393, 397 (2007) (“[S]chools may take steps to safeguard those entrusted to their care from speech that can reasonably be regarded as encouraging illegal drug use”); *Williams-Yulee v. Florida Bar*, 575 U. S. 433, 444 (2015) (explaining that although “it is the rare case” when a statute satisfies strict scrutiny, “those cases do arise” (quoting *Burson v. Freeman*, 504 U. S. 191, 211 (1992) (plurality opinion))).

Unfortunately, the Court has sometimes applied these rules—especially the category of “content discrimination”—too rigidly. In a number of cases, the Court has struck down what I believe are ordinary, valid regulations that pose little or no threat to the speech interests that the First Amendment protects. See *Janus v. State, County, and Municipal Employees*, 585 U. S. 878, 956 (2018) (KAGAN, J., dissenting); *Sorrell v. IMS Health Inc.*, 564 U. S. 552, 589–592 (2011) (BREYER, J., dissenting); see generally *Reed*, 576 U. S., at 176–178 (opinion of BREYER, J.).

Rather than deducing the answers to First Amendment questions strictly from categories, as the Court often does, I would appeal more often and more directly to the values the First Amendment seeks to protect. As I have previously written, I would ask whether the regulation at issue “works speech-related harm that is out of proportion to its justifications.” *United States v. Alvarez*, 567 U. S. 709, 730 (2012) (opinion concurring in judgment); see *Reed*, 576 U. S., at 179 (opinion concurring in judgment) (discussing the matter further, particularly in respect to the category of content discrimination).

B

This case illustrates the limits of relying on rigid First Amendment categories, for the statute at issue does not fit easily into any of these categories.

The Court has not decided whether the trademark statute is simply a method of regulating pure “commercial speech.” See *Matal v. Tam*, 582 U. S. 218, 244–245 (2017) (opinion of ALITO, J.) (leaving open the question whether trademarks

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are commercial speech); *id.*, at 251 (opinion of Kennedy, J.) (same). There may be reasons for doubt on that score. Trademarks, after all, have an expressive component in addition to a commercial one, and the statute does not bar anyone from speaking. To be sure, the statute does regulate the commercial function of trademarks. But it does so in a limited way designed primarily to ensure that a mark identifies the product's source. See *Wal-Mart Stores, Inc. v. Samara Brothers, Inc.*, 529 U. S. 205, 212 (2000).

The trademark statute cannot easily be described as a regulation of “government speech,” either. *Tam*, 582 U. S., at 233–239. The Government, however, may be loosely associated with the mark because it registers the mark and confers certain benefits upon the owner.

What about the concept of a “public forum”? Trademark registration has little in common with a traditional public forum, as the register of trademarks is not a public park, a street, or a similar forum for public debate. See *Perry Ed. Assn. v. Perry Local Educators' Assn.*, 460 U. S. 37, 45 (1983). But one can find some vague resemblance between trademark registration and what this Court refers to as a “limited public forum” created by the government for private speech. See *post*, at 422 (opinion of SOTOMAYOR, J.); *Christian Legal Soc. Chapter of Univ. of Cal., Hastings College of Law v. Martinez*, 561 U. S. 661, 679, n. 11 (2010). The trademark registration system also bears some resemblance to cases involving government subsidies for private speech, as such programs—like trademark registration—may grant a benefit to some forms of speech without prohibiting other forms of speech. See *post*, at 422 (opinion of SOTOMAYOR, J.); *Legal Services Corporation v. Velazquez*, 531 U. S. 533, 543–544 (2001) (noting that the First Amendment rules applicable to limited public forums may be “instructive” “when the government establishes a subsidy for specified ends”).

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As for the concepts of “viewpoint discrimination” and “content discrimination,” I agree with JUSTICE SOTOMAYOR that the boundaries between them may be difficult to discern. *Post*, at 417–418; see *Rosenberger v. Rector and Visitors of Univ. of Va.*, 515 U. S. 819, 831 (1995) (“[T]he distinction is not a precise one”). Even so, it is hard to see how a statute prohibiting the registration of only highly vulgar or obscene words discriminates based on “viewpoint.” Of course, such words often evoke powerful emotions. Standing by themselves, however, these words do not typically convey any particular viewpoint. See *FCC v. Pacifica Foundation*, 438 U. S. 726, 746, n. 22 (1978) (noting that the Government’s regulation of vulgar words was based not on “point of view,” but on “the way in which [speech] is expressed”). Moreover, while a restriction on the registration of highly vulgar words arguably places a content-based limit on trademark registration, it is hard to see why that label should be outcome-determinative here, for regulations governing trademark registration “inevitably involve content discrimination.” *Reed*, 576 U. S., at 177 (opinion of BREYER, J.); see *Tam*, 582 U. S., at 252 (opinion of Kennedy, J.) (noting that the constitutionality of some content-based trademark restrictions is “well settled”); Katyal, Trademark Intersectionality, 57 UCLA L. Rev. 1601, 1602 (2010) (noting that trademark law is “indelibly rooted in content-based considerations”).

In short, the trademark statute does not clearly fit within any of the existing outcome-determinative categories. Why, then, should we rigidly adhere to these categories? Rather than puzzling over categorization, I believe we should focus on the interests the First Amendment protects and ask a more basic proportionality question: Does “the regulation at issue wor[k] harm to First Amendment interests that is disproportionate in light of the relevant regulatory objectives”? *Reed*, 576 U. S., at 179 (opinion of BREYER, J.).

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II

Based on this proportionality analysis, I would conclude that the statute at issue here, as interpreted by JUSTICE SOTOMAYOR, does not violate the First Amendment.

How much harm to First Amendment interests does a bar on registering highly vulgar or obscene trademarks work? Not much. The statute leaves businesses free to use highly vulgar or obscene words on their products, and even to use such words directly next to other registered marks. Indeed, a business owner might even use a vulgar word as a trademark, provided that he or she is willing to forgo the benefits of registration. See *post*, at 409–410 (opinion of SOTOMAYOR, J.); *Tam*, 582 U. S., at 225–227.

Moreover, the field at issue here, trademark law, is a highly regulated one with a specialized mission: to “hel[p] consumers identify goods and services that they wish to purchase, as well as those they want to avoid.” *Id.*, at 224. As I have noted, that mission, by its very nature, requires the Government to impose limitations on speech. *Supra*, at 405. Trademark law therefore forbids the registration of certain types of words—for example, those that will likely “cause confusion,” or those that are “merely descriptive.” 15 U. S. C. §§ 1052(d), (e). For that reason, an applicant who seeks to register a mark should not expect complete freedom to say what she wishes, but should instead expect linguistic regulation.

Now consider, by way of contrast, the Government’s interests in barring the registration of highly vulgar or obscene trademarks. For one thing, when the Government registers a mark, it is necessarily “involv[ed] in promoting” that mark. *Post*, at 424–425 (opinion of SOTOMAYOR, J.). The Government has at least a reasonable interest in ensuring that it is not involved in promoting highly vulgar or obscene speech, and that it will not be associated with such speech.

For another, scientific evidence suggests that certain highly vulgar words have a physiological and emotional im-

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pact that makes them different in kind from most other words. See M. Mohr, *Holy S***: A Brief History of Swearing* 252 (2013) (Mohr) (noting the “emotional impact” of certain profane words that “excite the lower-brain circuitry responsible for emotion,” resulting in “electrical impulses that can be measured in the skin”). These vulgar words originate in a different part of our brains than most other words. *Id.*, at 250. And these types of swear words tend to attract more attention and are harder to forget than other words. See Jay, Caldwell-Harris, & King, *Recalling Taboo and Non-taboo Words*, 121 *Am. J. Psych.* 83, 83–86 (2008) (collecting research). Notably, that has remained true even as the list of offensive swear words has changed over time: In the last few centuries, the list has evolved away from words of religious disrespect and toward words that are sexually explicit or that crudely describe bodily functions. Mohr 253. And the list of swear words may be evolving yet again, perhaps in the direction of including race-based epithets. *Id.*, at 254, 256.

These attention-grabbing words, though financially valuable to some businesses that seek to attract interest in their products, threaten to distract consumers and disrupt commerce. And they may lead to the creation of public spaces that many will find repellant, perhaps on occasion creating the risk of verbal altercations or even physical confrontations. (Just think about how you might react if you saw someone wearing a t-shirt or using a product emblazoned with an odious racial epithet.) The Government thus has an interest in seeking to disincentivize the use of such words in commerce by denying the benefit of trademark registration. Cf. *Brandenburg v. Ohio*, 395 U. S. 444, 447 (1969) (*per curiam*) (permitting regulation of words “directed to inciting or producing imminent lawless action” and “likely to incite or produce such action”).

Finally, although some consumers may be attracted to products labeled with highly vulgar or obscene words, others

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may believe that such words should not be displayed in public spaces where goods are sold and where children are likely to be present. They may believe that trademark registration of such words could make it more likely that children will be exposed to public displays involving such words. To that end, the Government may have an interest in protecting the sensibilities of children by barring the registration of such words. See *Denver Area Ed. Telecommunications Consortium, Inc. v. FCC*, 518 U. S. 727, 743 (1996) (plurality opinion) (noting the Government's interest in "protec[ting] children from exposure to patently offensive sex-related material"); *Ginsberg v. New York*, 390 U. S. 629, 640 (1968) (noting the government's "interest in the well-being of its youth").

The upshot of this analysis is that the narrowing construction articulated by JUSTICE SOTOMAYOR risks some harm to First Amendment interests, but not very much. And applying that interpretation seems a reasonable way—perhaps the only way—to further legitimate government interests. Of course, there is a risk that the statute might be applied in a manner that stretches it beyond the few vulgar words that are encompassed by the narrow interpretation JUSTICE SOTOMAYOR sets forth. That risk, however, could be mitigated by internal agency review to ensure that agency officials do not stray beyond their mandate. In any event, I do not believe that this risk alone warrants the facial invalidation of this statute.

I would conclude that the prohibition on registering "scandalous" marks does not "wor[k] harm to First Amendment interests that is disproportionate in light of the relevant regulatory objectives." *Reed*, 576 U. S., at 179 (opinion of BREYER, J.). I would therefore uphold this part of the statute. I agree with the Court, however, that the bar on registering "immoral" marks violates the First Amendment. Because JUSTICE SOTOMAYOR reaches the same conclusions, using roughly similar reasoning, I join her opinion insofar as it is consistent with the views set forth here.

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JUSTICE SOTOMAYOR, with whom JUSTICE BREYER joins, concurring in part and dissenting in part.

The Court’s decision today will beget unfortunate results. With the Lanham Act’s scandalous-marks provision, 15 U. S. C. § 1052(a), struck down as unconstitutional viewpoint discrimination, the Government will have no statutory basis to refuse (and thus no choice but to begin) registering marks containing the most vulgar, profane, or obscene words and images imaginable.

The coming rush to register such trademarks—and the Government’s immediate powerlessness to say no—is eminently avoidable. Rather than read the relevant text as the majority does, it is equally possible to read that provision’s bar on the registration of “scandalous” marks to address only obscenity, vulgarity, and profanity. Such a narrowing construction would save that duly enacted legislative text by rendering it a reasonable, viewpoint-neutral restriction on speech that is permissible in the context of a beneficial governmental initiative like the trademark-registration system. I would apply that narrowing construction to the term “scandalous” and accordingly reject respondent Erik Brunetti’s facial challenge.

I

Trademark registration, as the majority notes, is not required for using, owning, or suing others for infringing a trademark. Rather, the trademark-registration system is an ancillary system set up by the Government that confers a small number of noncash benefits on trademark-holders who register their marks. See *ante*, at 391.

The Government need not provide this largely commercial benefit at all. Once the Government does provide the benefit, however, it may not restrict access on the basis of the viewpoint expressed by the relevant mark. See *ante*, at 393–394. For that reason, the Court concluded in *Matal v. Tam*, 582 U. S. 218 (2017), that § 1052(a)’s provision directing the U. S. Patent and Trademark Office (PTO) to deny regis-

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tration to “disparag[ing]” trademarks was unconstitutional. This case centers on a neighboring set of restrictions: § 1052(a)’s provision barring registration of marks featuring “immoral . . . or scandalous matter.”

The majority finds viewpoint discrimination here by treating the terms “scandalous” and “immoral” as comprising a unified standard that allows messages “aligned with conventional moral standards” but forbids messages “hostile to” such standards. See *ante*, at 394. While the majority’s interpretation of the statute is a reasonable one, it is not the only reasonable one.

A

As the majority notes, there are dictionary definitions for both “immoral” and “scandalous” that do suggest a viewpoint-discriminatory meaning. See *ibid.* And as for the word “immoral,” I agree with the majority that there is no tenable way to read it that would ameliorate the problem. The word clearly connotes a preference for “rectitude and morality” over its opposite. See *ibid.*

It is with regard to the word “scandalous” that I part ways with the majority. Unquestionably, “scandalous” can mean something similar to “immoral” and thus favor some viewpoints over others. See *ante*, at 395. But it does not have to be read that way. To say that a word or image is “scandalous” can instead mean that it is simply indecent, shocking, or generally offensive. See Funk & Wagnalls New Standard Dictionary 2186 (1944) (Funk & Wagnalls) (“shocking to the sense of truth, decency, *or* propriety; disgraceful, offensive” (emphasis added)); Webster’s New International Dictionary 2229 (1942) (“exciting reprobation; calling out condemnation”); 9 Oxford English Dictionary 175 (1933) (“Of the nature of, or causing, a ‘stumbling-block’ or occasion of offence”); 8 Century Dictionary and Cyclopedia 5374 (1911) (Century Dictionary) (“Causing scandal or offense; exciting reproach or reprobation; extremely offensive to the sense of duty or propriety; shameful; shocking”); see also Webster’s

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New College Dictionary 1008 (3d ed. 2005) (“shocking or offensive”). That offensiveness could result from the views expressed, but it could also result from the way in which those views are expressed: using a manner of expression that is “shocking to [one’s] sense of . . . decency,” Funk & Wagnalls 2186, or “extremely offensive to the sense of . . . propriety,” 8 Century Dictionary 5374.

The word “scandalous” on its own, then, is ambiguous: It can be read broadly (to cover both offensive ideas and offensive manners of expressing ideas), or it can be read narrowly (to cover only offensive modes of expression). That alone raises the possibility that a limiting construction might be appropriate. But the broader text confirms the reasonableness of the narrower reading, because the word “scandalous” appears in the statute alongside other words that can, and should, be read to constrain its scope.

It is foundational “that a statute is to be read as a whole, since the meaning of statutory language, plain or not, depends on context.” *King v. St. Vincent’s Hospital*, 502 U. S. 215, 221 (1991) (citation omitted). “‘Words are not pebbles in alien juxtaposition; they have only a communal existence; and not only does the meaning of each interpenetrate the other, but all in their aggregate take their purport from the setting in which they are used.’” *Ibid.* (quoting *NLRB v. Federbush Co.*, 121 F. 2d 954, 957 (CA2 1941) (L. Hand, J.)). Accordingly, and relatedly, courts should, to the extent possible, read statutes so that “‘no clause, sentence, or word shall be superfluous, void, or insignificant.’” *TRW Inc. v. Andrews*, 534 U. S. 19, 31 (2001).¹

¹ For example, *McDonnell v. United States*, 579 U. S. 550 (2016), involved a statute that defined an “‘official act’” as “‘any decision or action on any question, matter, cause, suit, proceeding or controversy.’” *Id.*, at 566. The Court declined to read “‘question’” and “‘matter’” as covering “a typical meeting, call, or event arranged by a public official” because doing so would deprive the words “‘cause, suit, proceeding or controversy’” of meaning. *Id.*, at 569.

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Here, Congress used not only the word “scandalous,” but also the words “immoral” and “disparage,” in the same block of statutory text—each as a separate feature that could render a mark unregistrable. See § 1052(a). *Tam* already decided that “disparage” served to prohibit marks that were offensive because they derided a particular person or group. See 582 U. S., at 243 (opinion of ALITO, J.) (“It denies registration to any mark that is offensive to a substantial percentage of the members of any group”); *id.*, at 249 (opinion of Kennedy, J.) (“[A]n applicant may register a positive or benign mark but not a derogatory one”). That defines one of the three words. Meanwhile, as the majority explains, the word “immoral” prohibits marks that are offensive because they transgress widely held moral beliefs. See *ante*, at 394. That defines a second of the three words.

With marks that are offensive because they are disparaging and marks that are offensive because they are immoral already covered, what work did Congress intend for “scandalous” to do? A logical answer is that Congress meant for “scandalous” to target a third and distinct type of offensiveness: offensiveness in the mode of communication rather than the idea. The other two words cover marks that are offensive because of the ideas they express; the “scandalous” clause covers marks that are offensive because of the mode of expression, apart from any particular message or idea.

To be sure, there are situations in which it makes sense to treat adjoining words as expressing the same or highly similar concepts (even at the risk of some redundancy). Cf. *Swearingen v. United States*, 161 U. S. 446, 450 (1896) (construing “‘obscene, lewd or lascivious’” to have a unified meaning). That is essentially the approach that the majority takes. See *ante*, at 395.² But that is not the approach

²That interpretive move appears to accord with the Federal Circuit and the PTO’s past practice. *Ante*, at 391–392. Nevertheless, it is by no means the only reasonable way to read this text, and indeed some courts have

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that Congress appears to have intended here. For example, “scandalous” does not serve as a broader catchall at the end of a list of similar words that all point in one direction. *E. g.*, *Washington State Dept. of Social and Health Servs. v. Guardianship Estate of Keffeler*, 537 U. S. 371, 384 (2003). Nor is “scandalous” simply grouped among a number of closely related terms that help define its meaning. *E. g.*, *Gustafson v. Alloyd Co.*, 513 U. S. 561, 575 (1995).

The text of § 1052, instead, is a grab bag: It bars the registration of marks featuring “immoral, deceptive, or scandalous matter,” as well as, *inter alia*, disparaging marks, flags, insignias, mislabeled wines, and deceased Presidents. See §§ 1052(a)–(e). This is not, in other words, a situation in which Congress was simply being “verbos[e] and proli[x],” *Bruesewitz v. Wyeth LLC*, 562 U. S. 223, 236 (2011), using two synonyms in rapid-fire succession when one would have done fine. Instead, “scandalous” and “immoral” are separated by an unrelated word (“deceptive”) and mixed in with a lengthy series of other, unrelated concepts. The two therefore need not be interpreted as mutually reinforcing under the Court’s precedents. See *Graham County Soil and Water Conservation Dist. v. United States ex rel. Wilson*, 559 U. S. 280, 288 (2010).

For that reason, while the majority offers a reasonable reading of “scandalous,” it also unnecessarily and ill-advisedly collapses the words “scandalous” and “immoral.” Instead, it should treat them as each holding a distinct, non-redundant meaning, with “immoral” covering marks that are offensive because they transgress social norms, and “scandalous” covering marks that are offensive because of the mode in which they are expressed.

What would it mean for “scandalous” in § 1052(a) to cover only offensive modes of expression? The most obvious

suggested that “scandalous” can and should be applied independently of “immoral,” see, *e. g.*, *In re McGinley*, 660 F. 2d 481, 485, n. 6 (CCPA 1981).

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ways—indeed, perhaps the only conceivable ways—in which a trademark can be expressed in a shocking or offensive manner are when the speaker employs obscenity, vulgarity, or profanity.³ Obscenity has long been defined by this Court’s decision in *Miller v. California*, 413 U. S. 15 (1973). See *id.*, at 24–26. As for what constitutes “scandalous” vulgarity or profanity, I do not offer a list, but I do interpret the term to allow the PTO to restrict (and potentially promulgate guidance to clarify) the small group of lewd words or “swear” words that cause a visceral reaction, that are not commonly used around children, and that are prohibited in comparable settings.⁴ Cf. 18 U. S. C. § 1464 (prohibiting “obscene, indecent, or profane language” in radio communications); *FCC v. Pacifica Foundation*, 438 U. S. 726, 746, and n. 22 (1978) (opinion of Stevens, J.) (regulator’s objection to a monologue containing various “four-letter words” was not to its “point of view, but to the way in which it [wa]s expressed”); 46 CFR § 67.117(b)(3) (2018) (Coast Guard regulation prohibiting vessel names that “contain” or are “phonetically identical to obscene, indecent, or profane language, or to racial or ethnic epithets”); see also Jacobs, *The Public*

³ Other modes of expression, such as fighting words or extremely loud noises, could also be called shocking or offensive in certain contexts, see *R. A. V. v. St. Paul*, 505 U. S. 377, 386 (1992), but it is hard to see how they would apply in the context of a trademark.

⁴ Although the Government represents, and case law and scholarship appear to confirm, that “scandalous” in § 1052(a) has often been applied to cover this kind of content, see Brief for Petitioner 27; *In re Boulevard Entertainment, Inc.*, 334 F. 3d 1336, 1340 (CA Fed. 2003); Snow, *Denying Trademark for Scandalous Speech*, 51 U. C. D. L. Rev. 2331, 2339 (2018) (Snow), the majority notes that the PTO has hardly amassed a perfect track record of consistency, see *ante*, at 395–396. Be that as it may, the Government undeniably receives a large volume of trademark applications that easily would fit under this rubric (examples of which I will spare the reader). See *In re Brunetti*, 877 F. 3d 1330, 1355 (CA Fed. 2017) (noting an appendix containing marks denied registration “whose offensiveness cannot be reasonably questioned”). As a result of today’s ruling, all of those marks will now presumably have to be registered.

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Sensibilities Forum, 95 Nw. U. L. Rev. 1357, 1416–1417, and n. 432 (2001) (noting that “swear words” are “perhaps more than any other categor[y] capable of specific articulation” and citing one state agency’s list). Of course, “scandalous” offers its own limiting principle: If a word, though not exactly polite, cannot be said to be “scandalous”—*e. g.*, “shocking” or “extremely offensive,” 8 Century Dictionary 5374—it is clearly not the kind of vulgarity or profanity that Congress intended to target. Everyone can think of a small number of words (including the apparent homonym of Brunetti’s mark) that would, however, plainly qualify.⁵

B

A limiting construction like the one just discussed is both appropriate in this context and consistent with past precedent. First, while a limiting construction must always be at least reasonable, there are contexts in which imposing such a construction is more appropriate than others. The most obvious example of a setting where more caution is required is in the realm of criminal statutes, where considerations such as the prohibition against vagueness and the rule of lenity come into play. See *Reno v. American Civil Liberties Union*, 521 U. S. 844, 872 (1997) (noting that “[t]he severity of criminal sanctions” can increase First Amendment concerns); *Board of Airport Comm’rs of Los Angeles v. Jews for Jesus, Inc.*, 482 U. S. 569, 575–576 (1987) (declining to apply a limiting construction to a provision that banned “‘First Amendment activities’” from an airport and noting that the

⁵There is at least one particularly egregious racial epithet that would fit this description as well. While *Matal v. Tam*, 582 U. S. 218 (2017), removed a statutory basis to deny the registration of racial epithets in general, the Government represented at oral argument that it is holding in abeyance trademark applications that use that particular epithet. See Tr. of Oral Arg. 61. As a result of today’s ruling, the Government will now presumably be compelled to register marks containing that epithet as well rather than treating it as a “scandalous” form of profanity under § 1052(a).

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limiting construction proposed would “‘confe[r] on police a virtually unrestrained power to arrest and charge persons with a violation,’” leading to “‘self-evident’” “‘opportunity for abuse’”). Here, however, the question is only whether the Government must be forced to provide the ancillary benefit of trademark registration to pre-existing trademarks that use even the most extreme obscenity, vulgarity, or profanity. The stakes are far removed from a situation in which, say, Brunetti was facing a threat to his liberty, or even his right to use and enforce his trademark in commerce.

Second, the Court has in the past accepted or applied similarly narrow constructions to avoid constitutional infirmities. In *Chaplinsky v. New Hampshire*, 315 U.S. 568 (1942), for example, the Court accepted the New Hampshire Supreme Court’s narrowing of a state statute covering “‘any offensive, derisive or annoying word,’” *id.*, at 569, to reach only those words that would strike the average person as being “plainly likely to cause a breach of the peace by the addressee,” *id.*, at 573. “[T]hus construed,” this Court decided, the statute did not violate the right to free speech. *Ibid.*; see also *Boos v. Barry*, 485 U.S. 312, 329–330 (1988) (accepting Court of Appeals’ construction of a statute making it illegal “‘to congregate within 500 feet of any [embassy, legation, or consulate] and refuse to disperse after having been ordered so to do by the police’” to reach only “congregations that are directed at an embassy” and “‘only when the police reasonably believe that a threat to the security or peace of the embassy is present’”).

In *Frisby v. Schultz*, 487 U.S. 474 (1988), the Court addressed an ordinance that prohibited “‘picketing before or about the residence or dwelling of any individual.’” *Id.*, at 477. The Court construed the statute to reach only “focused picketing taking place solely in front of a particular residence.” *Id.*, at 483. Given that “narrow scope,” the statute was not facially unconstitutional. *Id.*, at 488; see also *In re Brunetti*, 877 F.3d 1330, 1358 (CA Fed. 2017) (Dyk, J., con-

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curring in judgment) (noting this Court’s narrow constructions of federal obscenity statutes).

Taking the word “scandalous” to target only those marks that employ an offensive mode of expression follows a similar practice. To be sure, the word could be read more broadly, thereby sweeping unconstitutionally into viewpoint discrimination. And imposing a limiting construction is, of course, “not a license for the judiciary to rewrite language enacted by the legislature.” *United States v. Albertini*, 472 U. S. 675, 680 (1985). But where the Court can reasonably read a statute like this one to save it, the Court should do so. See *Stern v. Marshall*, 564 U. S. 462, 477–478 (2011); *NLRB v. Jones & Laughlin Steel Corp.*, 301 U. S. 1, 30 (1937).

II

Adopting a narrow construction for the word “scandalous”—interpreting it to regulate only obscenity, vulgarity, and profanity—would save it from unconstitutionality. Properly narrowed, “scandalous” is a viewpoint-neutral form of content discrimination that is permissible in the kind of discretionary governmental program or limited forum typified by the trademark-registration system.

A

Content discrimination occurs whenever a government regulates “particular speech because of the topic discussed or the idea or message expressed.” *Reed v. Town of Gilbert*, 576 U. S. 155, 163 (2015); see also *Ward v. Rock Against Racism*, 491 U. S. 781, 791 (1989) (“Government regulation of expressive activity is content neutral so long as it is ‘justified without reference to the content of the regulated speech’”). Viewpoint discrimination is “an egregious form of content discrimination” in which “the government targets not subject matter, but particular views taken by speakers on a subject.” *Rosenberger v. Rector and Visitors of Univ. of Va.*, 515 U. S. 819, 829 (1995).

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While the line between viewpoint-based and viewpoint-neutral content discrimination can be “slippery,” see Corbin, *Mixed Speech: When Speech Is Both Private and Governmental*, 83 N. Y. U. L. Rev. 605, 651 (2008), it is in any event clear that a regulation is not viewpoint discriminatory (or even content discriminatory) simply because it has an “incidental effect” on a certain subset of views. *Ward*, 491 U. S., at 791. Some people, for example, may have the viewpoint that society should be more sexually liberated and feel that they cannot express that view sufficiently without the use of pornographic words or images. That does not automatically make a restriction on pornography into viewpoint discrimination, despite the fact that such a restriction limits communicating one’s views on sexual liberation in that way. See *ibid.*; *Renton v. Playtime Theatres, Inc.*, 475 U. S. 41, 48 (1986).

Restrictions on particular modes of expression do not inherently qualify as viewpoint discrimination; they are not by nature examples of “the government target[ing] . . . particular views taken by speakers on a subject.” *Rosenberger*, 515 U. S., at 829. For example, a ban on lighting fires in the town square does not facially violate the First Amendment simply because it makes it marginally harder for would-be flag burners to express their views in that place. See *R. A. V. v. St. Paul*, 505 U. S. 377, 385 (1992). By the same token, “fighting words are categorically excluded from the protection of the First Amendment” not because they have no content or express no viewpoint (often quite the opposite), but because “their content embodies a particularly intolerable (and socially unnecessary) *mode* of expressing *whatever* idea the speaker wishes to convey.” *Id.*, at 393; see *id.*, at 385–386; cf. *Bolger v. Youngs Drug Products Corp.*, 463 U. S. 60, 84 (1983) (Stevens, J., concurring in judgment) (“It matters whether a law regulates communications for their ideas or for their style”).

A restriction on trademarks featuring obscenity, vulgarity, or profanity is similarly viewpoint neutral, though it is natu-